

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights **POLICY: 7.002**

SUBJECT: Media Access for Patients

POINT PERSON: Director of Treatment Services

APPROVED: Sara Walker, MD  **DATE: JULY 25, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes parameters for patient access to audio and visual media at Oregon State Hospital (OSH). OSH supports reasonable patient access to visual media, taking into consideration the patient's treatment environment and individual treatment needs, and balancing patient rights, vulnerabilities, risk mitigation, and protection from harm.
- B. This policy applies to all staff and patients.

II. POLICY

- A. None of the following may be displayed in any area of OSH:
 - 1. media which meets the definition of pornographic material in this policy;
 - 2. media which overtly promotes criminal, violent, or self-destructive behavior;
 - 3. media which overtly expresses hatred on the basis of race, religion, national origin, or sexual orientation; or
 - 4. media rated "NC-17", "X", "MA", or equivalent rating systems
- B. Individual patient guidelines on acceptable media must be developed in consultation with the patient's interdisciplinary treatment team (IDT) including, when necessary, the Sexual Offender Treatment Program.
 - 1. Patient trauma history must be considered in the guideline review process.
 - 2. Guidelines for patient viewing of any media is outlined in this policy and in any individual restrictions established by the IDT.

- C. Copyrighted media in any form (e.g., written materials, videos) may not be used except in compliance with applicable copyright or piracy laws. Downloading pirated media is prohibited.
- D. In accordance with OSH's Public Performance License, OSH may only provide "non-theatrical public viewing of movies" from an approved list of movies stocked in the patient library. Movies may not be brought from home, rented, or purchased by staff for patient viewing except with prior written approval from the Director of Treatment Services or designee.
- E. A patient may access media rated "Everyone 10+" (E10+) and "Teen" (T) or the equivalent movie rating "parental guidance-13" (PG-13) unless the patient has a restriction established for therapeutic reasons. Electronic games rated "Mature" (M) or "Adult-Only" (AO) are prohibited unless an exception in this policy applies.
- F. A civilly committed or voluntarily admitted patient or a patient who resides on a secure residential treatment facility (SRTF) unit (i.e., Bridges 1, Bridges 2, Bridges 3, Forest 2) may access media rated "Mature" (M) or "adult only" (AO) or the equivalent movie rating "restricted" (R) unless the patient has a restriction established for therapeutic reasons.
- G. An IDT may restrict a patient from accessing any media which contains known triggering or known traumatic content or is otherwise deemed to be detrimental to the patient's treatment.
 - 1. A patient requiring exceptional levels of restrictions from access to media must have such restrictions clearly communicated with the patient. Such restrictions must be reflected in their treatment care plan (TCP), along with goals and interventions to progressively reduce the restrictions if indicated.
 - 2. The IDT must consider exceptional levels of restrictions for patients whose behavior or trauma may be triggered by media allowed for the patient's roommate.
- H. Group leaders will communicate media showing with Director of Treatment Services or designee and unit leadership via written communication.
- I. A staff member who wishes to show a patient R-rated or not rated media must have express, documented permission from the patient's IDT.
 - 1. In consideration of such requests, the IDT will review:
 - a. the media's therapeutic value,
 - b. how it would be used (e.g., discussion, etc.),
 - c. the patient's trauma history and risk mitigation, and

- d. therapeutic goals in relation to viewing the media.
- 2. The program director will review the IDT recommendation and rationale regarding the R-rated or not rated media.
- J. Before a movie may be viewed from a studio for which OSH does not have a Public Performance License or for which does not otherwise contract to provide non-theatrical public viewing of movies, the Director of Treatment Services or designee must contact the movie studio directly for written permission to use or view the movie.
- K. Electronic games purchased by OSH may not be rated higher than E10+.
- L. Staff must consult with the Music Therapy Director or designees before music may be downloaded.
- M. If a dispute arises between a patient and staff regarding access to media, the patient may file a grievance regarding the dispute in accordance with the provisions of OSH Policy and Procedure 7.006, "Patient Grievances."
- N. If OSH determines a patient is violating state or federal laws relating to copyrights, licenses, permits, or other proprietary rights, all copied materials and equipment used for copying the materials will be confiscated and handled in accordance with OSH Policies and Procedures 8.037, "Patient Property and Valuables," 8.019, "Staff Response to Alleged Criminal Acts and Contraband," 8.044, "Contraband and Prohibited Items," and Oregon Administrative Rule 309-108-0015.
- O. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- P. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Media" in this policy means visual or audio content or material and communication channels through which news, entertainment, education, data, or other messages are distributed. Media includes but is not limited to photos, newspapers, magazines, videos, television, music, and radio.
- B. "Pornographic material" means media which displays sexually-explicit behavior or activities.

- C. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

6.030 Electronic Device and Internet Access for Patients

6.052 Trauma Screening

7.006 Patient Grievances

8.019 Staff Response to Alleged Criminal Acts and Contraband

8.037 Patient Property and Valuables: Handling and Storage

8.044 Contraband and Prohibited Items

V. REFERENCES

42 CFR § 482.13.

Joint Commission Resources, Inc. (2018). *The joint commission comprehensive accreditation manual for hospitals*, PC.01.02.13. Oakbrook Terrace, IL: Author.

Oregon Administrative Rule 309-108-0015.